

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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ALY KEITA,

Index No.: 33666/2019E

Plaintiff,

- against -

COMPLAINT

THE CITY OF NEW YORK,
THE NEW YORK CITY POLICE DEPARTMENT,
DETECTIVE CHRISTOPHER BRADY, individually and as
POLICE OFFICER SHIELD #1427, POLICE OFFICER
VINCENT FORTINO, individually and as
POLICE OFFICER SHIELD #23156,

Defendants.
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NOW COMES, Plaintiff, by and through his attorneys, KUPILLAS, UNGER &
BENJAMIN, LLP., as and for the complaint against the Defendants, respectfully shows this
Court and alleges as follows:

PARTIES

1) ALY KEITA ("Plaintiff") is a resident of the City and State of New York, residing in
Bronx County.

2) That, at all times, hereinafter mentioned, the Defendant, THE CITY OF NEW YORK,
was and still is a municipal corporation duly organized, created, and existing under and by virtue
of the laws of the City and State of New York.

3) That at all times mentioned herein, Defendant City of New York, maintained and
controlled the Police Department of the City of New York.

4) That the New York City Police Department was and is an agency, instrumentality, departmental and/or governmental corporation under the direction and control of the Defendant, City of New York.

5) That at all times hereinafter mentioned, Detective CHRISTOPHER BRADY, was acting both in his individual and official capacities as a New York City police officer/detective when he falsely and maliciously arrested Plaintiff without probable cause.

6) That at all times hereinafter mentioned, Officer VINCENT FORTINO, was acting both in his individual and official capacities as a New York City police officer/detective when he responded to the subject 911 call, took the domestic incident report and falsely and maliciously testified against Plaintiff at trial.

7) This is also an action under both state and federal law which arises under both the New York and United States Constitution, particularly under provisions of the Fourth and Fourteenth Amendments to the Constitution of the United States, and federal law, particularly the Civil Rights Acts, Title 42 of the United Code, Section 1983, 1981, 1988, 1985(3) et seq.,

8) This action is for malicious prosecution and civil rights violation under both state and federal law.

9) Each and all of the acts of the Defendants alleged herein were done in their individual capacities as well as agents, servants and employees, of the City of New York under the color State law, as police officers of said state, city and county.

10) That Notice of Plaintiff's claim for damages for Malicious prosecution and under state and federal law, civil rights violations concerning the date of, time when, place where, and manner in which the claims arose was duly served upon the Comptroller, Defendant CITY OF

NEW YORK on November 6, 2018, within 90 days of dismissal of the criminal charges on October 19, 2018.

11) That more than 30 days have elapsed since the Notice of Claim has been served upon Defendant CITY OF NEW YORK and other Defendants and said Defendants have neglected to or refused to make any adjustments or payment thereof.

FIRST CAUSE OF ACTION

**ON BEHALF OF PLAINTIFF, AGAINST THE CITY OF NEW YORK ET AL
FOR MALICIOUS PROSECUTION**

12) The Plaintiff hereby incorporates by reference each and every preceding paragraph 1 through 11 inclusive as if fully plead and re-alleged herein.

13) That following Plaintiff's false arrest on February 20, 2018, he was mandated to attend several court appearances.

14) Plaintiff thereafter was forced to participate and appear many times in criminal court to defend against the subject bogus criminal charges.

15) Plaintiff appeared in Criminal Court from his arrest in February, 2018 through and including his trial and acquittal on October 19, 2018.

16) On October 19, 2018, all criminal charges were dismissed at trial and were without merit.

17) The dismissal of the criminal charges against Plaintiff was a favorable termination of the criminal proceedings.

18) Plaintiff has been damaged in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION
FOR CIVIL RIGHT ACTION 42 USC §1983:
MALICIOUS PROSECUTION

19) The Plaintiff hereby incorporates by reference each and every preceding paragraph 1 through 18 inclusive as if fully plead and re-alleged herein.

20) That prior to Defendants' arrest of Plaintiff on February 20, 2018 and throughout Defendants' malicious prosecution of Plaintiff on no evidence, the City of New York by the New York City Police Department's conducted a practice of violating the constitutional rights of individuals such as against Plaintiff by their false arrest and malicious prosecution on such charges including without limitation, assault and others where there was no visible physical injury but prosecuted him nonetheless.

21) That, upon information and belief, before Plaintiff's arrest, Defendants, various New York City Police Commissioners of the New York City Police Department, approved, authorized, established, and ratified policies, procedures, and protocols for NYPD's supervisory staff to maliciously prosecute individuals.

22) The instant arrest of Plaintiff based on four (4) meritless Counts centered around assault and other accusations by an accuser which have should revealed to any Detective or Officer that the subject charges were false.

23) Plaintiff appeared in court on multiple occasions between his arrest in February, 2018 and his acquittal at trial on October 19, 2018.

24) The dismissal of the criminal charges against Plaintiff was a favorable termination of the criminal proceedings.

25) Plaintiff has been damaged in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR THIRD CAUSE OF ACTION:
EQUAL PROTECTION, VIOLATION UNDER 42 USC 1981 AND DENIAL OF EQUAL
PROTECTION IN VIOLATION PURSUANT TO ARTICLE I, § 11 OF THE NEW
YORK STATE CONSTITUTION AGAINST ALL DEFENDANTS:

26) The Plaintiff hereby incorporates by reference each and every preceding paragraph 1-25 of this Complaint as though fully plead and re-alleged in their entirety below.

27) That the above facts of Plaintiff's claims under §§1983, 1985, and below 1981 Article 1, Section of the New York State Constitution constitute violations of Plaintiff's rights under the State and federal equal protection guaranteed to every citizen not be discriminated against upon the basis of Plaintiff's race.

28) Plaintiff states that he was treated differently by NYPD because of their policies and procedure wherein the City of New York police officers do not apply the same state-wide laws fairly and evenly to minority individuals on account of his race.

29) Plaintiff asserts that he was falsely arrested and then maliciously prosecuted for *inter alia* assault where the purported victim does not have any visible physical injuries.

30) Plaintiff has been damaged in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR THE FOURTH CAUSE OF ACTION
PURSUANT TO 42 USC SECTION 1985(3)

31) The Plaintiff hereby incorporates by reference each and every preceding paragraph 1-30 of this Complaint as though fully plead and re-alleged in their entirety below.

32) That Detective CHRISTOPHER BRADY and Officer VINCENT FORTINO acted in concert with other police officers falsely arresting and maliciously prosecuting Plaintiff.

33) Plaintiff has therefore been damaged in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR THE FIFTH CAUSE OF ACTION
PURSUANT TO 42 USC SECTION 1988 ATTORNEY FEES

34) Plaintiff hereby incorporates by reference each and every preceding paragraph 1-33 of this Complaint as though fully plead and re-alleged in their entirety below.

35) That should Plaintiff be successful on any one or all of his claims, he will seek attorney fees herein together with any other relief that is deemed just appropriate.

WHEREFORE: PLAINTIFF CLAIMS DAMAGES AS FOLLOWS:

- a. Compensatory damages in the sum which exceeds the jurisdictional limits of all lower courts.
- b. Punitive damages against the individually named detective in the sum which exceeds the jurisdictional limits of all lower courts.
- c. An award of reasonable attorney's fees, costs and disbursements;
- d. Plaintiff requests a trial by jury of all issues involved in this complaint;
- e. Such other and further relief as this Court may deem just, meet and proper under the circumstances.

Dated: New York, New York
January 31, 2020

KUPILLAS, UNGER & BENJAMIN, LLP.

Jeffrey Benjamin

By: Jeffrey Benjamin, Esq.
Attorney for Plaintiff
5 Penn Plaza, 23rd Floor
New York, NY 10001
(212) 835-1532